

3. **Nor be repugnant to the scope of the instrument.**—And averment is excluded, if from *the nature of the instrument* or *any circumstance of evidence* appearing on the face of it, an intention of making the legal holder the beneficiary also, can be clearly implied. Thus a trust cannot be averred, where a *valuable * consideration* is paid (*a*); and if a [*52] *pension* from the Crown be granted to A., a trust cannot be raised by parol in favour of B.; for a pension is conferred upon motives of honour, and the inducements to the bounty are the personal merits of the annuitant (*b*).

4. **Trusts not averrable where deed required to pass the legal estate.**—It was a principle of uses that, on a *feoffment*, which could be made by parol, a use might be declared by parol, but where a *deed* was necessary for passing the legal estate, there the use which was engrafted could not be raised by averment (*c*).¹ As trusts have been modelled after the likeness of the use (*d*), the distinction at the present day may deserve attention. It is laid down by Duke expressly, that, where the things given may pass *without deed* there a charitable use may be averred by witnesses; but, where the things *cannot pass without deed*, there charitable uses cannot be averred without a deed proving the use (*e*). And Lord Thurlow, it is probable, alluded to the same distinction when he observed, “I have been accustomed to consider uses as averrable, but perhaps, when looked into, the cases may relate to *feoffment*, not to conveyances by bargain and sale, or lease and release” (*f*). And in *Adlington v. Cann* (*g*), where a testator devised the legal estate in lands to A. and

(*a*) See *Gilb. on Uses*, 51, 57; *Pilkington v. Bayley*, 7 B. P. C. 526.

(*b*) *Fordyce v. Willis*, 3 B. C. C. 587.

(*c*) *Gilb. on Uses*, 270.

(*d*) See *Fordyce v. Willis*, 3 B. C. C. 587; *Lloyd v. Spillet*, 2 Atk. 150; *Attorney-General v. Lockley*, *Append. to Vend. & Purch. No. 16*, 11th ed.; *Chaplin v. Chaplin*, 3 P. W. 234;

Attorney-General v. Scott, *Cas. t. Talb.* 139; *Burgess v. Wheate*, 1 *Eden*. 195, 217, 248; *Geary v. Bearcroft*, *Sir O. Bridg.* 488.

(*e*) *Duke*, 141.

(*f*) *Fordyce v. Willis*, 3 B. C. C. 587.

(*g*) 3 Atk. 141.

¹ *Simms v. Smith*, 11 Ga. 198; *Lloyd v. Inglis*, 1 Dcs. 333; *Steere v. Steere*, 5 Johns. Ch. 1; 9 Am. Dec. 256; *Dean v. Dean*, 6 Conn. 285; *Philbrook v. Delano*, 29 Me. 410; *Squires's App.* 70 Pa. St. 266; *Hutchinson v. Tindall*, 2 Green. Ch. 257; *Strong v. Glasgow*, 2 Murph. 289; *Leman v. Whitley*, 4 Russ. 423; *Harris v. Barnett*, 3 Gratt. 339.